

My Credit

Terms and Conditions

The My Credit program ("My Credit") is provided pursuant to this agreement, which may be amended from time to time. By enrolling in My Credit, you acknowledge that you have read, understood, and agree to these terms and conditions.

THIS AGREEMENT CONTAINS AN ARBITRATION CLAUSE AND CLASS ACTION WAIVER. YOU SHOULD READ THAT PROVISION CAREFULLY AS IT AFFECTS YOUR LEGAL RIGHTS.

My Credit is supported by data and services provided by Bank of America's service providers ConsumerInfo.com, Inc. (a/k/a Experian Consumer Services), CSIdentity Corporation, an Experian company ("CSID"), and their respective service providers (collectively "Experian").

"Bank of America", "we", "us" and "our" mean Bank of America, N.A.

"You" and "your" mean the individual who has enrolled in My Credit.

Eligibility

You must be at least 18 years of age, be an owner or co-owner of an eligible Bank of America consumer account, have a Social Security Number (SSN) and have a U.S. address in your Online Banking profile. For jointly owned consumer accounts, each eligible individual with their own Online Banking ID will be able to enroll in My Credit. If you are an Authorized User or guarantor on a Bank of America consumer account and are not an owner or co-owner of another eligible Bank of America consumer account, you are not eligible to enroll in My Credit. My Credit may not be available to you if you have limited or no credit bureau data. Bank of America reserves the right to determine your eligibility to participate in My Credit, including your access to or use of the service, at any time. If we determine that you are no longer eligible to participate in My Credit, you will be unenrolled and lose all access.

Enrollment

By enrolling in My Credit, you authorize Bank of America, directly or through its service provider, to obtain your FICO® Score and consumer report(s) from any consumer reporting agencies, and authorize each consumer reporting agency to release your FICO® Score and consumer report(s) to Bank of America, directly or through its service provider, upon Bank of America's request at any time during your enrollment in and use of My Credit. Bank of America, directly or through its service provider, will use your consumer report information and personal information to verify your identity and provide you with My Credit, including any features that we may change or add to the program from time to time, to send you servicing messages, including email alerts, market Bank of America products and services to you, and for any other purposes permitted by applicable law.

Certain My Credit features may require you to provide personal information and agree to additional terms.

FICO® Score and Credit Report

FICO® Score

Provides you with access to your FICO® Score, developed by Fair Isaac Corporation, which is based on the information in your Experian Credit Report at the time it is requested. Since the information in your credit report can change over time, your FICO® Score may also change. Please keep in mind that credit report information can vary from consumer reporting agency to consumer reporting agency because some lenders report accounts to only one or two of the agencies (Experian, TransUnion® and Equifax®). As a result, your FICO® Score can vary if the information the consumer reporting agency has on file for you is different.

The FICO® Score provided through My Credit is based on FICO® Score 8, unless otherwise noted. There are many different credit scoring models used by lenders to evaluate credit risk and your lender may use a different FICO® Score than FICO® Score 8 or another type of credit score altogether. Just remember that your credit rating is often the same even if the number is not.

You must have sufficient credit history in your consumer file with Experian to generate a FICO® Score and to receive your Experian Credit Report. If Experian is unable to match you with a consumer report or is otherwise unable to obtain your FICO® Score, you will not be able to use this feature until you have sufficient credit report history.

FICO® Score Factors and Score Ingredients

Provides you with details on FICO® Score factors and ingredients to help you better understand how certain activities can impact your score.

Score Goal

Allows you to choose your goal FICO® Score, select a timeframe that works for you, and then receive a personalized plan, including unique insights, that provides clear actions you can take to achieve your goal based on your Experian® credit data.

FICO® Score Simulator

Enables you to estimate how your FICO® Score could change if you were to complete certain actions, such as paying off your credit card and/or applying for new credit. The FICO® Score Simulator allows you to enter various data points to see potential financial impacts, such as a mortgage calculator, debt management, credit card payoff, personal finance management, and auto loan payoff. You can personalize your credit behaviors and see what would happen to your credit score with the changes.

Experian Credit Report

With direct access to your Experian Credit Report, which contains information about your credit accounts, current balances, payment history, public records, and negative information, you will have the information lenders use to make credit decisions and set interest rates. You will receive an automatic update of your Experian Credit Report each month you are enrolled in My Credit and have the option to refresh your Experian Credit Report up to three additional times each month.

Credit Monitoring

Experian Credit Monitoring

Receive alerts when there are key changes in your Experian Credit Report to help identify potential fraud. Key changes include: (1) change of address; (2) new inquiries; (3) new account opening; (4) public records; and (5) potentially derogatory information.

Real-Time Inquiry Alerts

These alerts, delivered in real-time, help you monitor your Experian Credit Report for hard inquiries, such as new applications for credit, and notifies you when an event has occurred.

C.L.U.B. Alerts

These alerts notify you when there are changes to your credit limit, utilization, and balance (C.L.U.B.). Experian provides daily monitoring of your consumer report with them and will alert you when: (1) a balance on any one of your credit accounts changes by \$5,000 or more; (2) the credit usage on any one of your accounts changes by 30% or more; and (3) when the credit limit on any one of your accounts changes by \$100 or more.

Dormant Account Alerts

Receive alerts when dormant accounts are detected on your Experian Credit Report. An account is dormant if it has a zero balance for six months. An alert will be sent if activity is detected on a dormant account.

Positive Activity Alerts

These alerts notify you when there are changes to your Experian Credit Report that may positively impact your credit score, such as account closure, account payment, account improvement, and account status.

FICO® Score Variance Alerts

The FICO® Score Variance Alert, which can be tailored based on your personal preferences, will notify you of changes to your FICO® Score, score rank/risk level, and/or when you have met your personal credit score goal.

- FICO® Score Goal – allows you to set a personalized credit score goal and receive alerts when your score reaches your target.
- FICO® Score Amount Change – allows you to set a personalized point range and receive an alert when your score goes up or down by a certain number.
- FICO® Score Rank/Risk Level Change – allows you to receive an alert when your score changes rank/risk level.

IDENTITY MONITORING AND RESTORATION

The following features are only available if you are also enrolled in the Bank's rewards program that is relaunching on or after May 26, 2026.

SSN Monitoring

Receive alerts if a new name, nickname or address is linked to your social security number (SSN). SSN Monitoring will provide a report of all names, aliases, and addresses associated with your SSN or your

child's SSN. SSN Monitoring for your children is limited to 10 children under the age of 18 and requires verification that you are eligible to receive alerts on their behalf.

CyberAgent® Dark Web Monitoring

This feature scans hidden internet sites, networks, and chat rooms known for illegal commerce of consumer personal information. CyberAgent® searches 15 years' worth of data, checking thousands of websites and millions of data points for compromises to your identity. After the first scan, you will receive an alert if a daily database check detects a match to your information.

The feature monitors the following personal information for you and each one of your enrolled children under the age of 18 (limited to 10 children): one social security number; one driver's license number, five national IDs; five passport numbers; 10 telephone numbers; 10 email addresses; 10 medical ID numbers; 10 credit/debit card numbers; 10 bank account numbers; 10 international bank account numbers (IBAN); and 10 retail credit card numbers.

Account Takeover Monitoring

This feature monitors financial institution data for compromises to your consumer deposit accounts. You will receive alerts if there are new deposit account applications or new open deposit accounts using your personal information, changes made to your personal information for an existing deposit account, and new authorized users added to your deposit account.

Child Identity Monitoring

This is a bundled feature, which includes SSN Monitoring and CyberAgent Dark Web Monitoring. Both the SSN Monitoring and CyberAgent Dark Web Monitoring, as described above, are limited to 10 children under the age of 18 and requires verification that you are eligible to receive these alerts on their behalf.

Full-Service Identity Restoration

Identity Restoration helps you and your child(ren) recover from identity theft faster with full-service restoration support. A certified restoration specialist will investigate alerts and dispute fraud activity to help you restore your identity. In certain cases, the specialist can obtain a consumer-consent limited Power of Attorney to further assist you in the restoration process. For Identity Restoration for your child(ren), a one-time parent or legal guardian verification will be needed.

Lost Wallet Protection

Allows you to save and store important payment information, such as your debit card or credit card, and identification information, such as your passport, driver's license and insurance cards, in one place – a digital wallet. If the stored cards or documents become lost or stolen, you can cancel or replace your cards and update your information within the wallet. You will also receive support from Experian's Restoration Specialists who can help you cancel and replace or reissue cards and documents.

Communications

By using My Credit, you acknowledge that these terms and conditions and all other communications, including alerts and notifications, may be sent to you electronically during any part of the day, including outside of normal business hours and between the hours of 9 p.m. and 8 a.m. local time. You agree that Bank of America and its service provider will not be liable for any damages or other liability related to the time of day any electronic communications, alerts, or notifications are sent or received.

My Credit will generate automatic alerts by email, which will be sent to the email address we have on file. These alerts provide you with important information, such as when your FICO® Score has increased or when your personal information is found online. These alerts may not be turned off and are a requirement of your use of My Credit. If you no longer want to receive My Credit alerts, you will need to unenroll from My Credit.

New Features

From time to time, we may introduce new features or modify or remove existing features from My Credit. If we do, we will notify you of the change if we are legally required to do so. Your use of any new or modified feature means that you have agreed to be bound by the terms and conditions that apply to that new or modified feature.

Unenroll

You may unenroll from My Credit at any time through our Mobile Banking app or Online Banking. Your unenrollment from My Credit will be effective after we have a reasonable period of time to process the request. If you decide to unenroll from My Credit, all My Credit features, including current and past FICO® Scores, will no longer be viewable in Online Banking or the Mobile App.

Termination, Suspension or Limitations

Bank of America may terminate My Credit in its entirety or cancel any of the individual features at any time and for any reason without prior notice. We may terminate, suspend or limit your use of, or access to, My Credit, in whole or in part, at any time and for any reason without prior notice. We may also terminate your use and access to My Credit at any time if we determine in our sole discretion that you are no longer eligible for My Credit.

Free Credit Report from AnnualCreditReport.com

While you have access to your credit report information and FICO® Score through My Credit, federal law provides you with the right to obtain your credit report for free from AnnualCreditReport.com, by calling toll free (877) 322-8228, or by using the mail request form on the website. You are entitled to one free credit report from each of the three national consumer reporting agencies (Experian Information Services, Inc., Equifax Inc., and TransUnion) during any 12-month period.

Bank of America is NOT a Credit Repair Organization

Bank of America, Experian and Fair Isaac are not credit repair organizations as defined under federal or state law, including the Credit Repair Organizations Act. Bank of America, Experian and Fair Isaac do not provide “credit repair” services or advice or assistance regarding “rebuilding” or “improving” your credit record, credit history or credit rating. Bank of America provides your FICO® Score and content related to the FICO® Score Program in Online Banking only for educational purposes and your non-commercial, personal use. Bank of America can provide no further assistance regarding improving your credit score except for addressing any disputes you may have regarding your accounts with Bank of America.

My Credit is not a credit counseling service and does not promise to help you obtain a loan or improve your credit record, history, or rating.

Changes to these Terms and Conditions

We may change these terms and conditions from time to time and will provide notice to you through email or by posting the updated terms and conditions within My Credit. Your use of My Credit after the updated terms and conditions have been posted or provided will be considered your acknowledgment and acceptance of them. If you do not agree with a change, you may unenroll from My Credit.

Governing Law

These terms and conditions, and your and our rights and obligations, are governed by and interpreted according to federal law and the laws of the State of North Carolina, without regard to its conflict of laws principles. If state and federal law are inconsistent, or if state law is preempted by federal law, federal law governs.

Disclaimer of Warranties

EXCEPT AS OTHERWISE PROVIDED HEREIN, AND SUBJECT TO APPLICABLE LAW, NEITHER BANK OF AMERICA, EXPERIAN, NOR ANY OF THEIR RESPECTIVE AFFILIATES OR SUBCONTRACTORS, OWNERS, DIRECTORS, OFFICERS OR AGENTS, MAKE ANY WARRANTY, EXPRESS OR IMPLIED, FOR THE ACCURACY OF THE INFORMATION CONTAINED IN OR PROVIDED IN CONJUNCTION WITH THE MY CREDIT SERVICE. BANK OF AMERICA AND EXPERIAN DISCLAIM ALL WARRANTIES OF ANY KIND, EXPRESS, IMPLIED, STATUTORY OR OTHERWISE, INCLUDING, BUT NOT LIMITED TO, IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE AND NON-INFRINGEMENT, WITH REGARD TO THE MY CREDIT SERVICES. NEITHER BANK OF AMERICA, EXPERIAN, NOR ANY OF THEIR RESPECTIVE AFFILIATES OR SUBCONTRACTORS, OWNERS, DIRECTORS, OFFICERS OR AGENTS, WARRANT THAT THESE SERVICES WILL BE UNINTERRUPTED, TIMELY, SECURE OR ERROR-FREE, OR THAT DEFECTS WILL BE CORRECTED. THE MY CREDIT SERVICES ARE PROVIDED ON AN "AS IS" AND "AS AVAILABLE" BASIS.

NEITHER BANK OF AMERICA, NOR ANY OF ITS RESPECTIVE AFFILIATES OR SUBCONTRACTORS, OWNERS, DIRECTORS, OFFICERS OR AGENTS, ARE RESPONSIBLE FOR NEGATIVE FACTUAL INFORMATION CONTAINED IN ANY REPORTS YOU RECEIVE AS PART OF MY CREDIT.

NEITHER BANK OF AMERICA, EXPERIAN, NOR ANY OF THEIR RESPECTIVE AFFILIATES OR SUBCONTRACTORS, OWNERS, DIRECTORS, OFFICERS OR AGENTS, WARRANT THAT MY CREDIT OR THE SERVER(S) THAT MAKES THE MY CREDIT SERVICES AVAILABLE THROUGH ONLINE BANKING OR MOBILE BANKING, IS FREE OF VIRUSES OR OTHER HARMFUL COMPONENTS. YOU ASSUME THE ENTIRE COST OF ALL NECESSARY SERVICING, REPAIR, OR CORRECTION OF PROBLEMS CAUSED BY VIRUSES OR OTHER HARMFUL COMPONENTS.

Limitation of Liability

EXCEPT AS OTHERWISE PROVIDED HEREIN, AND SUBJECT TO APPLICABLE LAW, IN NO EVENT WILL BANK OF AMERICA, EXPERIAN, NOR ANY OF THEIR RESPECTIVE AFFILIATES OR SUBCONTRACTORS, OWNERS, DIRECTORS, OFFICERS OR AGENTS SHALL HAVE ANY LIABILITY TO YOU IN OBTAINING COPIES OF: YOUR PERSONAL CREDIT REPORT, CREDIT ALERT REPORT, QUARTERLY UPDATE, OR CREDIT SCORE. NEITHER BANK OF AMERICA, EXPERIAN, NOR ANY OF THEIR RESPECTIVE AFFILIATES OR SUBCONTRACTORS, OWNERS, DIRECTORS, OFFICERS OR AGENTS ASSUME ANY LIABILITY FOR DAMAGES (WHETHER DIRECT OR INDIRECT, CONSEQUENTIAL, INCIDENTAL OR EXEMPLARY), IN CONNECTION WITH OR IN ANY WAY RELATED TO THE PERFORMANCE OF THE SERVICES OR YOUR REQUEST, USE OR ATTEMPTED USE OF THE SERVICES OR ANY DATA OR INFORMATION THEREFROM, EVEN IF ADVISED OF THE POSSIBILITY. THE

AGGREGATIVE LIABILITY OF ALL SUCH PARTIES TO YOU IN ANY EVENT IS LIMITED TO THE AMOUNT WHICH YOU HAVE PAID BANK OF AMERICA FOR YOUR ENROLLMENT IN AND USE OF MY CREDIT.

THESE TERMS SHALL SURVIVE ANY TERMINATION, CANCELLATION, OR EXPIRATION OF THESE TERMS AND CONDITIONS.

Dispute Resolution by Binding Arbitration

PLEASE READ THIS CAREFULLY. IT AFFECTS YOUR RIGHTS.

SUMMARY: MOST CUSTOMER CONCERNS CAN BE RESOLVED QUICKLY AND TO THE CUSTOMER'S SATISFACTION BY CALLING US AT 833-745-2385. IN THE UNLIKELY EVENT THAT CUSTOMER SERVICE IS UNABLE TO RESOLVE A COMPLAINT YOU MAY HAVE WITH BANK OF AMERICA OR IT'S SERVICE PROVIDER(S) TO YOUR SATISFACTION (OR IF BANK OF AMERICA AND/OR IT'S SERVICE PROVIDER(S) HAVE NOT BEEN ABLE TO RESOLVE A DISPUTE WITH YOU AFTER ATTEMPTING TO DO SO INFORMALLY), YOU, ON THE ONE HAND, AND BANK OF AMERICA AND/OR IT'S SERVICE PROVIDER(S), ON THE OTHER, EACH AGREE TO RESOLVE THOSE DISPUTES THROUGH BINDING ARBITRATION OR SMALL CLAIMS COURT INSTEAD OF IN COURTS OF GENERAL JURISDICTION TO THE FULLEST EXTENT PERMITTED BY LAW. ARBITRATION IS MORE INFORMAL THAN A LAWSUIT IN COURT. ARBITRATION USES A NEUTRAL ARBITRATOR INSTEAD OF A JUDGE OR JURY, ALLOWS FOR MORE LIMITED DISCOVERY THAN IN COURT, AND IS SUBJECT TO VERY LIMITED REVIEW BY COURTS. ARBITRATORS CAN AWARD THE SAME DAMAGES AND RELIEF THAT A COURT CAN AWARD. ANY ARBITRATION UNDER THIS AGREEMENT WILL TAKE PLACE ON AN INDIVIDUAL BASIS; CLASS ARBITRATIONS AND CLASS ACTIONS ARE NOT PERMITTED. BANK OF AMERICA WILL PAY ALL COSTS OF ARBITRATION, NO MATTER WHO WINS, SO LONG AS YOUR CLAIM IS NOT FRIVOLOUS. HOWEVER, IN ARBITRATION, YOU, ON THE ONE HAND, AND BANK OF AMERICA AND/OR IT'S SERVICE PROVIDER(S), ON THE OTHER, WOULD BE ENTITLED TO RECOVER ATTORNEYS' FEES FROM EACH OTHER PARTY TO THE SAME EXTENT AS YOU AND BANK OF AMERICA AND/OR IT'S SERVICE PROVIDER(S) WOULD BE IN COURT.

You, on the one hand, and Bank of America and/or its service provider(s), on the other, agree that any claim or dispute ("Claim") between us shall, to the maximum extent permitted by applicable law, at the election of any one of us, be resolved by binding arbitration administered by the American Arbitration Association ("AAA") under its rules for consumer arbitrations. It is the parties' intent that this arbitration provision be construed broadly, including that this arbitration agreement include any Claims by You against Bank of America or its service provider(s) as well as their respective corporate affiliates for claims arising out of this Agreement directly related to the services or product/service websites. You agree that, by entering into this Agreement, You, Bank of America and its service provider(s) are each waiving the right to a trial by jury or to participate in a class action, to the maximum extent permitted by applicable law. A party who intends to seek arbitration must first provide notice to the other of the nature and basis of the claim or dispute and the specific relief sought (the "Demand"). The Demand to Bank of America and and/or its service provider(s) should be provided by calling Bank of America at 833-745-2385. If Bank of America and/or its service provider(s) and You do not reach an agreement to resolve the claim within thirty (30) days after the Demand is made, You may commence an arbitration proceeding. At Your request, we will promptly reimburse You for Your payment of Your arbitration filing fee. (The filing fee currently is \$200 for claims under \$10,000 but is subject to change by the arbitration provider. If You are unable to pay this fee, we will pay it directly after receiving a written request). The arbitrator may award injunctive relief only in favor of the individual party seeking relief and only to the extent necessary to provide relief warranted by that party's individual Claim. YOU, ON ONE HAND, AND BANK OF AMERICA AND/OR IT'S SERVICE

PROVIDER(S), ON THE OTHER, AGREE THAT EACH MAY BRING CLAIMS AGAINST THE OTHER ONLY IN YOUR OR ITS INDIVIDUAL CAPACITY, AND NOT AS A PLAINTIFF OR CLASS MEMBER IN ANY PURPORTED CLASS OR REPRESENTATIVE PROCEEDING EXCEPT AS OTHERWISE PROVIDED IN THIS SECTION. Further, unless You, on one hand, and Bank of America and/or its service provider(s), on the other, agree otherwise, the arbitrator may not consolidate more than one person's Claims, and may not otherwise preside over any form of a representative or class proceeding to the maximum extent permitted by applicable law. If this specific provision in the preceding sentence is found to be unenforceable, then the entirety of this arbitration provision in this Section shall be null and void.

YOU AND BANK OF AMERICA AND/OR ITS SERVICE PROVIDER(S) AGREE THAT IN THE EVENT THAT MASS ARBITRATION IS ATTEMPTED OR SOUGHT, SUCH ARBITRATION SHALL BE ADMINISTERED PURSUANT TO THE FOLLOWING RULES. (1) For the purposes of this Agreement "Mass Arbitration" means 25 or more arbitration demands that: (i) are filed within 180 days of each other, (ii) allege similar or identical claims or causes of action, and (iii) either (a) the parties to those arbitration demands seek to simultaneously or collectively administer and/or arbitrate together, or (b) are filed by the same counsel or in connection with each other. (2) In the event that Mass Arbitration is attempted or sought involving 250 arbitration demands or less, you and Bank of America and/or its service provider(s) agree the arbitration provider shall: (i) group the arbitration demands into batches of no less than 25 arbitration demands per group; and (ii) provide for resolution of each group or batch as a single arbitration with one set of filing and administrative fees and a single arbitrator assigned per group or batch. In the event that Mass Arbitration is attempted or sought involving over 250 arbitration demands, you and Bank of America and/or its service provider(s) agree that the arbitration provider shall: (i) group the arbitration demands into batches of no less than 250 arbitration demands per group; and (ii) provide for resolution of each group or batch as a single arbitration with one set of filing and administrative fees and a single arbitrator assigned per group or batch. All Mass Arbitration shall be subject to all other substantive and procedural terms contained within this Agreement. (3) If any part of the preceding sentences in (1) and (2) is found to be unenforceable, the unenforceable portion shall be stricken, and the remainder of the sentences and this Agreement shall be enforced to the maximum extent permitted by law.

Notwithstanding any of the foregoing provisions, any party may bring an individual action in small claims court. The parties to this Agreement acknowledge that this arbitration agreement is made pursuant to a transaction involving interstate commerce, and shall be governed by the Federal Arbitration Act, 9 U.S.C. § 1 et seq. ("FAA"). Judgment upon any arbitration award may be entered in any court having jurisdiction. The arbitrator shall follow substantive law to the extent consistent with the FAA and shall honor any claims or privileges recognized by law. The terms of this section shall survive any termination, cancellation or expiration of this Agreement.

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